

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DCCED

Date: 5/21/2026

Bill Number: HB 126

Short Title (as it appears on BASIS): Reinstatement Native Corps/ANCSA Reports

What action do you recommend the Governor take?

Select one.

☐ SIGN ☐ VETO ☒ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

We have no concerns with allowing ANCSA corporations that have been involuntarily dissolved to reinstate at any time (Section 1). We'd defer to DCCED-DBS on the recommended action on this bill related to Section 2.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

This legislation allows corporations organized as a Native village corporation under the Alaska Native Claims Settlement Act (ANCSA) that have been involuntarily dissolved to be reinstated at any time. It also amends which ANCSA corporations are required to provide annual reports, proxies, consents/authorizations, proxy statements, and other similar materials available to shareholders.

Currently, most corporations that were involuntarily dissolved can only reinstate within two years from the date of involuntary dissolution, and only if it establishes there was no cause for

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the dissolution, or the neglect, omission, delinquency, or noncompliance resulting in dissolution has been corrected and payment made of double the amount of delinquency along with the amount the corporation would have paid if it had not been dissolved during the two-year period. Additionally, under current law, ANCSA corporations organized as Native village corporations that had been involuntarily dissolved could be reinstated on or before December 31, 2020.

Section 1 may align with Governor Dunleavy’s priorities by removing red tape for ANCSA corporations that wish to reinstate after an involuntary dissolution after more than two years has passed. We are unsure of the impact of Section 2 (added in by SCS CSHB 126(L&C)) and would defer to DCCED-DBS on that.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1 Amends AS 10.06.960(k) – under *corporations organized under Alaska Native Claims Settlement Act* – to allow ANCSA corporations that were involuntarily dissolved to be reinstated at any time (rather than on or before December 31, 2020).

Section 2 Amends AS 45.55.139 – under *Alaska Native Claims Settlement Act Corporations: reports of corporations* – to remove the exclusion that currently exists for companies with assets under \$1M from making all annual reports, proxies, consents/authorizations, proxy statements and other materials relating to proxy solicitations distributed, published, or made available by any person to at least 30 Alaska resident shareholders of an ANCSA corporation. Instead, the exemption will exist for ANCSA corporations with a class of equity security held of record by 500 or more original shareholders when the corporation was originally organized (rather than 500 persons, as is currently the case).

Section 3 Provides an immediate effective date.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

- Companions – none
- Similar – none
- Amendments –
 - CS by (H)TRB to allow involuntarily dissolved ANCSA corporations to reinstate at any time rather than allowing them to reinstate on or before 12/31/2026.
 - Amendment by Rep. Rauscher on the floor allowed for involuntarily dissolved religious corporations and nonprofit corporations organized for a religious purpose to

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- reinstate at any time.
- CS by (S)CRA removed Rep. Rauscher’s amendment.
 - CS by (S)L&C changed the ANCSA corporations that need to provide copies of annual reports, proxies, consents/authorizations, proxy statements, and other materials relating to proxy solicitations distributed/published/made available by any person to at least 30 Alaska resident shareholders with a class of equity security held of record by 500 or more original shareholders when the corporation was originally organized – whereas current law requires this of an ANCSA corporation that has total assets exceeding \$1M and a class of equity security held of record by 500 or more persons.

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Support: Alaska Native Village Corporation Association.

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

We are not sure of a recommended bill signing ceremony location, but perhaps at AFN.

Commissioner’s Signature:


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Date: 5/26/2026

I have reviewed the above information and provided it to the Governor’s Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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